

**FICTIONAL TRAINING ARTIFACT — NOT FILED — NOT LEGAL
ADVICE**

UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA
Richmond Division — Civil Action No. SYN-EDVA-25-CV-0412

BENTON'S OPPOSITION TO SUMMARY JUDGMENT

Filed: November 10, 2025

Leora Benton opposes Blue Cedar's motion because the admitted evidence presents a classic jury question about pretext and but-for causation. Blue Cedar opened its manager-selection workbook days after the final decisionmaker received Benton's agency charge. During the next month, her leading imported score fell sixteen points, retained managers received exceptions, and the company approved her termination even though several other combinations met the same savings target. The termination letter relied on budget and redundancy; later accounts added completion, availability, and client confidence.

Benton does not ask the Court to deny that Blue Cedar pursued real savings. A legitimate program can still contain a retaliatory selection. The question is why Benton was chosen from a group of managers performing overlapping work. Pike's documented knowledge, the six-week sequence, asymmetric scoring, qualifying alternatives, positive performance, continuing duties, and changing explanations permit a reasonable factfinder to reject Blue Cedar's account. Rule 56 requires those disputes to be tried rather than resolved by selecting the employer's preferred interpretation.

Rule 56 and Foster require consideration of the combined record

Summary judgment is unavailable when the evidence, viewed for the nonmovant, permits competing reasonable inferences about a material fact. The Court may identify the governing standard and exclude unsupported speculation, but it may not decide which witness is more credible, choose among plausible explanations, or isolate each item so completely that the whole evidentiary picture disappears.

Foster preserves the burden-shifting method for a Title VII retaliation claim. The prima-facie causation inquiry and the ultimate but-for inquiry are distinct. After Blue Cedar identifies a legitimate RIF reason, Benton must offer evidence from which a jury could find that reason was not the real explanation and retaliation made the difference. She need not produce an admission of unlawful motive. Timing, knowledge, deviations, comparator treatment, and weaknesses in the employer's stated account may jointly support the required inference.

Blue Cedar's motion repeatedly asks the Court to accept its coverage judgments as honestly held. That is the disputed point. The same records that document the judgments also show contrary source data, unresolved variances, alternatives, and later-added rationales. A jury may consider those facts without second-guessing an ordinary business decision merely because it was imperfect.

Pike knew of both protected acts before the six-week sequence

Benton complained in writing on January 17 that recorded lead credit reflected a sex-based assignment pattern. Naomi Voss understood the message that way and forwarded it to human resources. Benton filed an agency charge on February 3. Blue Cedar received the notice on February 10, and Mira Solis sent the packet to Pike that afternoon. The system recorded Pike's open event on February 11, followed by his reply and attendance at the February 12 meeting about preservation, assignment-score sources, staffing inputs, and response responsibility.

The RIF workbook opened February 14. Calibration changes occurred March 4 through March 14; Pike approved Benton for termination March 21; Blue Cedar terminated her March 24, six weeks after receiving the notice. Pike now admits general awareness of both the internal opposition and agency matter. The company therefore cannot reduce the dispute to an automated email status or claim that the decisionmaker lacked notice.

Timing alone is not Benton's case. Timing places the remaining evidence in sequence. The protected activity, decisionmaker notice, opening of the RIF model, downward adjustments, approval, and termination occurred in a compact period while the employee-relations review was still subject to the company's ninety-day control.

The calibration departed from source data and the written control

Benton's read-only source values produced 84 points, the highest imported manager total. She had forty-seven of fifty audits completed on time, two active transitions extending through June, twenty-eight completed travel days, two current credentials, and responsibility for remediation quality. No refreshed source record reduced those measures. Instead, calibration lowered continuity from 22 to 14, availability from 12 to 6, and uniqueness from 9 to 7.

The written protocol required a cited basis and comparable treatment for manual changes. Solis flagged three unresolved variances: Benton's later-ending transitions lost credit while Wynn's earlier transition gained it; Benton's completed travel and one scheduling conflict were weighed against Ibarra's promise of future travel; and Keene received an automation credit without a transfer-time estimate. Pike's notation, "approved—business continuity," did not answer each variance or add a supporting source.

Blue Cedar calls these forward-looking judgments. A jury could instead find that the label masks selective treatment, particularly because Benton was never asked about the June handoffs or the short-notice conflict before the deductions. Preserving a change in a version log proves the change occurred; it does not prove the reason was applied consistently or honestly.

Comparator treatment supports a reasonable pretext inference

All four managers planned regulated-client audits, assigned field staff, reviewed findings, and handled remediation. Blue Cedar itself placed them in one calibration group. Differences in portfolio may affect weight, but they do not erase the common functions or prevent comparison of how the stated criteria were applied.

Wynn's Lantern transition ended May 30, yet her continuity score increased from 20 to 22. Benton's Northline and Oriole transitions ran through June, yet her continuity score fell eight points as handoff capable. Ibarra had sixteen completed travel days, compared with Benton's twenty-eight, but his future-travel offer raised availability from 9 to 14 while Benton's one next-day conflict lowered her from 12 to 6. Keene's uniqueness increased for accessible scripts without a documented transfer estimate, while Benton's uniqueness decreased because her remediation work could be divided.

These are not demands that the employees be identical. They are comparisons within the same criteria and decision. Each retained manager received a preserved or increased credit and no downward adjustment; Benton received three reductions. A factfinder could view the pattern, together with knowledge and timing, as evidence that the announced criteria did not truly explain the choice.

Multiple target-reaching alternatives undercut claimed necessity

The parties agree that finance established a \$612,000 annualized target and that B-7 projected \$618,400. But the corporate witness also admitted Benton was not mathematically necessary. The nonmanager position base was \$470,400. Adding the modeled \$14,600 archive-hosting consolidation allowed combinations using Wynn, Ibarra, or Keene instead of Benton to reach \$624,000, \$617,000, or \$613,000.

Blue Cedar says Pike rejected those combinations for coverage reasons. That explanation creates, rather than removes, a factual dispute because the record permits contrary comparisons. Wynn was already carrying Lantern when she was slated to receive Northline. Ibarra had less completed travel when he was slated to receive Oriole. Keene's scripts were available to the manager group, and no transfer study established that the library could not be reassigned. Benton's own active work continued after termination.

The alternatives matter not because an employer must select the cheapest or highest-scoring employee, but because they isolate Pike's discretionary choice. Finance did not require Benton. The written scores initially favored her. A jury may examine whether the asserted coverage distinctions honestly drove the choice or were invoked to defend a selection made for another reason.

Performance, redistribution, and expanding explanations reinforce the dispute

Benton's 2024 review called her a strong performer. She had no discipline, attendance warning, failed regulatory deliverable, or contemporaneous client complaint. Her completion and credential scores did not decline. The March 24 letter said budget savings and redistribution of redundant management work; it did not mention performance, availability, or client confidence.

The work did not disappear. Wynn received Northline, Ibarra received Oriole, Keene received the remediation queue, and Voss assumed the monthly quality meeting. By May 31, the transferred matters remained active. That redistribution may support role elimination, but it also permits a jury to compare Blue Cedar's claim that Benton's coverage was dispensable with the substantial work retained managers had to absorb.

The rationale then grew. The April agency response added relative completion and availability. Pike's July account added client confidence, although Voss identified no contemporaneous client complaint and the recorded ratings were positive. Blue Cedar calls these details of one reason. A factfinder could view them as successive efforts to strengthen an explanation after the concise termination rationale, especially when the new terms track the same disputed calibration fields.

The complete circumstantial record belongs to a jury

Blue Cedar separates every fact: knowledge is not motive, timing is not causation, an adjustment is not retaliation, a comparator difference is not falsity, an alternative is not a command, and a later explanation is not necessarily inconsistent. Each proposition can be true in isolation. Foster nevertheless requires the Court to consider whether the evidence together permits a finding that retaliation was the real reason.

Here, Pike knew of protected opposition and agency participation; the RIF model followed notice; Benton's leading source score was reduced without new quantitative data; retained managers received favorable exceptions; human resources left consistency questions unresolved; qualifying alternatives existed; Benton's performance was positive; her work continued; and the employer's description expanded over time. No single fact is declared conclusive. Their combination supports more than speculation.

Voss supplied recommendations and entered material calibration changes, while Pike retained final approval and knowledge of the protected acts. Benton need not resolve every possible theory about whose input carried the most weight to defeat this motion. Pike's own knowledge and approval, coupled with the evidence surrounding the choice, permit a direct inference concerning the final decision. Credibility and relative weight must be determined at trial.

Declaration of Tessa Wynn — newly recalled March 7 conversation

I, Tessa Wynn, declare from personal knowledge as follows. I am an audit manager employed by Blue Cedar Compliance, Inc. I gave deposition testimony on October 2, 2025 concerning my duties, source metrics, calibration score, continuity exception, and assignments retained or received. On October 13, while reviewing that transcript, I revisited my early-March calendar and notes. The review refreshed my memory of a conversation with Naomi Voss during the March 7 calibration day that I had not described in my deposition.

Voss approached me near the operations conference room after asking about contingency coverage. She said: “Leora has made this an HR and EEOC problem; if her position is removed, can you take Northline?” I answered that I could take Northline with transition support because I was still responsible for Lantern. Voss did not tell me that a final decision had been made, and she did not show me the scores or savings scenarios.

I did not understand the question to be an instruction from Draven Pike, and I do not attribute those words to Pike. My testimony is limited to what Voss said to me and my answer.

Wynn declaration — disclosure chronology and verification

My deposition included a question about whether Voss asked me to take Northline if staffing changed. I answered that she did. I was not asked for the exact wording, whether Voss mentioned Benton's protected activity, or what prompted me to connect the coverage request to the March 7 date. My present account adds that subject; it does not withdraw my testimony that I never saw the manager scores, attended calibration, recommended a termination, or knew Pike's complete reasons.

I contacted Benton on October 14 after the transcript review and described the recollection. On October 15, Benton forwarded the information to her counsel. Counsel interviewed me on October 20 and prepared this declaration after confirming the date against my calendar. I signed it on November 3, 2025. I understand Blue Cedar first received the signed declaration on November 4.

I have not been promised payment, employment treatment, or any litigation result for making this statement. I declare under penalty of perjury that the foregoing is true and correct to the best of my knowledge and recollection.

Executed on November 3, 2025, in Richmond, Virginia.

Tessa Wynn

This declaration is attached to Benton's opposition. Benton maintains that the remaining record independently defeats summary judgment and preserves all responses to any objection concerning use of this declaration.